



U.S. Department
of Transportation

Research and
Special Programs
Administration

JAN 23 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9877
(FIRST REVISION)

EXPIRATION DATE: January 15, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Systron Donner
Concord, CA
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of DOT 39 Specification cylinders, containing a Division 2.2 gas, with a filling density of 144 percent which exceeds the authorized filling density. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.304(a)(2), 173.304(b) relating to the authorized filling density.
5. BASIS: This exemption is based on the application of Systron Donner dated May 26, 1993, submitted in accordance with 49 CFR 107.105 and supplemental letter dated January 8, 1996.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Bromotrifluoromethane pressurized with nitrogen -- Compressed gases, n.o.s	2.2	UN1956	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. Packaging prescribed is a DOT 39 Specification cylinder having a maximum volume of 10 cubic inches. Each cylinder must be equipped with a rupture disc set at 3200 psig and be tested for leakage with nitrogen at 2700 psig prior to shipment.

b. The maximum permitted filling density is 144 percent.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. Each cylinder must be overpacked for shipment in accordance with 49 CFR 173.301(k)(1).

d. The cylinder may be used only for fire extinguishing purposes aboard helicopters.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS: None as a requirement of this exemption.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

JAN 23 1996

Alan I. Roberts
SM/ Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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